

1                   **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2                               STATE OF OKLAHOMA

3                               2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE  
5 FOR  
6 HOUSE BILL NO. 4491

By: Kane and **Townley** of the  
House

and

**Daniels** of the Senate

11                               COMMITTEE SUBSTITUTE

12           An Act relating to schools; amending 70 O.S. 2021,  
13           Section 3-140, as amended by Section 10, Chapter 323,  
14           O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-140),  
15           which relates to student eligibility; authorizing  
16           certain virtual charter school students to  
17           participate in Oklahoma Secondary School Activities  
18           Association (OSSAA) activities; allowing school  
19           districts to adopt a policy for charter school  
20           students, virtual charters school students, and  
21           students educated by other means to participate in  
22           extracurricular activities the district offers;  
23           establishing eligibility requirements; providing  
24           options for students to participate in other  
              districts under certain circumstances; prescribing  
              participation requirements for students that align  
              with public school district requirements; defining  
              terms; requiring student participants who are  
              educated by other means to adhere to certain academic  
              standards; providing methods of evaluation of  
              academic standards; amending 70 O.S. 2021, Section  
              27-103, which relates to school athletic association  
              written policy; prohibiting public schools from  
              joining a school athletic association that does not  
              allow certain students to participate in activities

1 offered by public school districts; providing for  
2 codification; and providing an effective date.

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4  
5 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

6 SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-140, as  
7 amended by Section 10, Chapter 323, O.S.L. 2023 (70 O.S. Supp. 2025,  
8 Section 3-140), is amended to read as follows:

9 Section 3-140. A. A charter school with a brick-and-mortar  
10 school site or sites shall enroll those students whose legal  
11 residence is within the boundaries of the school district in which  
12 the charter school is located and who submit a timely application,  
13 or those students who transfer to the charter school in accordance  
14 with the Education Open Transfer Act, unless the number of  
15 applications exceeds the capacity of a program, class, grade level,  
16 or building. Students who reside in a school district where a  
17 charter school is located shall not be required to obtain a transfer  
18 in order to attend a charter school in the school district of  
19 residence. If capacity is insufficient to enroll all eligible  
20 students, the charter school shall select students through a lottery  
21 selection process. A charter school shall give enrollment  
22 preference to eligible students who reside within the boundaries of  
23 the school district in which the charter school is located and who  
24 attend a school site that has been identified as in need of

1 improvement by the State Board of Education pursuant to the  
2 Elementary and Secondary Education Act of 1965, as amended or  
3 reauthorized. A charter school may limit admission to students  
4 within a given age group or grade level. A charter school sponsored  
5 by the Statewide Charter School Board when the applicant of the  
6 charter school is the Office of Juvenile Affairs shall limit  
7 admission to youth that are in the custody or supervision of the  
8 Office of Juvenile Affairs.

9 B. A brick-and-mortar charter school shall admit students who  
10 reside in the attendance area of a school or in a school district  
11 that is under a court order of desegregation or that is a party to  
12 an agreement with the United States Department of Education Office  
13 for Civil Rights directed towards mediating alleged or proven racial  
14 discrimination unless notice is received from the resident school  
15 district that admission of the student would violate the court order  
16 or agreement.

17 C. A brick-and-mortar charter school may designate a specific  
18 geographic area within the school district in which the charter  
19 school is located as an academic enterprise zone and may limit  
20 admissions to students who reside within that area. An academic  
21 enterprise zone shall be a geographic area in which sixty percent  
22 (60%) or more of the children who reside in the area qualify for the  
23 free or reduced school lunch program.

24

1 D. Except as provided in subsections B and C of this section, a  
2 charter school or virtual charter school shall not limit admission  
3 based on ethnicity, national origin, gender, income level, disabling  
4 condition, proficiency in the English language, measures of  
5 achievement, aptitude, or athletic ability.

6 E. A sponsor of a charter school shall not restrict the number  
7 of students a charter school may enroll, and the Statewide Charter  
8 School Board shall not restrict the number of students a virtual  
9 charter school or charter school may enroll. The capacity of a  
10 charter school or virtual charter school shall be determined  
11 quarterly by the governing board of the charter school or virtual  
12 charter school pursuant to the provisions of the Education Open  
13 Transfer Act.

14 F. Beginning July 1, 2024, each statewide virtual charter  
15 school which has been approved and sponsored by the Statewide  
16 Charter School Board or any virtual charter school for which the  
17 Board has assumed sponsorship as provided for in Section ~~4~~ 3-132.1  
18 of this ~~act~~ title shall be considered a statewide virtual charter  
19 school and the geographic boundaries of each statewide virtual  
20 charter school shall be the borders of the state.

21 ~~H.~~ G. Beginning July 1, ~~2024~~ 2026, students enrolled full-time  
22 in a statewide virtual charter school sponsored by the Statewide  
23 Charter School Board shall ~~not~~ be authorized to participate in any  
24 activities administered by the Oklahoma Secondary School Activities

1 Association pursuant to Section 2 of this act. ~~However, the~~ The  
2 students may also participate in intramural activities sponsored by  
3 a statewide virtual charter school, an online provider for the  
4 charter school, or any other outside organization.

5 ~~I.~~ H. 1. Beginning July 1, 2024, a public school student who  
6 wishes to enroll in a virtual charter school shall be considered a  
7 transfer student from his or her resident school district. A  
8 virtual charter school shall pre-enroll any public school student  
9 whose parent or legal guardian expresses intent to enroll in the  
10 virtual charter school. Upon pre-enrollment, the State Department  
11 of Education shall initiate a transfer on a form to be completed by  
12 the receiving virtual charter school. Upon approval of the  
13 receiving virtual charter school, the student may begin  
14 instructional activities. Upon notice that a public school student  
15 has transferred to a virtual charter school, the resident school  
16 district shall transmit the student's records within three (3)  
17 school days.

18 2. The State Department of Education shall notify the  
19 Legislature and Governor if it determines that the information  
20 technology infrastructure necessary to process the transfer of  
21 students to a virtual charter school is inadequate and additional  
22 time is needed for implementation.

23 3. A public school student may transfer to one statewide  
24 virtual charter school at any time during a school year. For

1 purposes of this subsection, "school year" shall mean July 1 through  
2 the following June 30. After one statewide virtual charter school  
3 transfer during a school year, no public school student shall be  
4 permitted to transfer to any other statewide virtual charter school  
5 without the concurrence of both the resident school district and the  
6 receiving virtual charter school. A student shall have a grace  
7 period of fifteen (15) school days from the first day of enrollment  
8 in a statewide virtual charter school to withdraw without academic  
9 penalty and shall continue to have the option of one virtual charter  
10 school transfer without the concurrence of both the resident school  
11 district and the receiving virtual charter school during that same  
12 school year. A statewide virtual charter school student that has  
13 utilized the allowable one transfer pursuant to this subsection  
14 shall not be permitted to transfer to another school district or  
15 another statewide virtual charter school without first notifying his  
16 or her resident district and initiating a new transfer. Upon  
17 cancellation of a transfer, the virtual charter school shall  
18 transmit the student's records to the student's new school district  
19 within three (3) school days. Students enrolled in a statewide  
20 virtual charter school shall not be required to submit a virtual  
21 charter transfer for consecutive years of enrollment. Any student  
22 enrolled in a statewide virtual charter school the year prior to the  
23 implementation of this section shall not be required to submit a  
24 transfer in order to remain enrolled.

1       ~~F.~~ I. 1. Beginning July 1, 2024, a student shall be eligible  
2 to enroll in a statewide virtual charter school sponsored by the  
3 Statewide Charter School Board pursuant to Section ~~±~~ 3-132.1 of this  
4 ~~act~~ title if he or she is a student whose parent or legal guardian  
5 is transferred or is pending transfer to a military installation  
6 within this state while on active military duty pursuant to an  
7 official military order.

8       2. A statewide virtual charter school shall accept applications  
9 by electronic means for enrollment and course registration for  
10 students described in paragraph 1 of this subsection.

11       3. The parent or legal guardian of a student described in  
12 paragraph 1 of this subsection shall provide proof of residence in  
13 this state within ten (10) days after the published arrival date  
14 provided on official documentation. A parent or legal guardian may  
15 use the following addresses as proof of residence:

- 16           a. a temporary on-base billeting facility,
- 17           b. a purchased or leased home or apartment, or
- 18           c. federal government or public-private venture off-base  
19           military housing.

20       4. The provisions of paragraph 3 of subsection ~~±~~ H of this  
21 section shall apply to students described in paragraph 1 of this  
22 subsection.

23       5. For purposes of this subsection:  
24

1           a.    "active military duty" means full-time military duty  
2                   status in the active uniformed service of the United  
3                   States including members of the National Guard and  
4                   Military Reserve on active duty orders, and

5           b.    "military installation" means a base, camp, post,  
6                   station, yard, center, homeport facility for any ship,  
7                   or other installation under the jurisdiction of the  
8                   Department of Defense or the United States Coast  
9                   Guard.

10       SECTION 2.       NEW LAW       A new section of law to be codified  
11       in the Oklahoma Statutes as Section 3-140.1 of Title 70, unless  
12       there is created a duplication in numbering, reads as follows:

13       A.   Beginning with the 2026-2027 school year, each school  
14       district board of education may adopt a policy allowing students who  
15       are enrolled in a charter school or virtual charter school  
16       authorized pursuant to the Oklahoma Charter Schools Act to  
17       participate in extracurricular activities that the school district  
18       offers.

19       B.   Students enrolled in a charter school or virtual charter  
20       school authorized pursuant to the Oklahoma Charter Schools Act shall  
21       be eligible to participate in extracurricular activities offered by  
22       the student's resident school district if:

23       1.   The extracurricular activity is not offered by the charter  
24       school or virtual charter school in which the student is enrolled;



1        2. The extracurricular activity does not have an associated  
2 course requirement; and

3        3. The resident school district has adopted a policy pursuant  
4 to subsection A of this section.

5        C. A charter school student or virtual charter school student  
6 may apply to a public school district adjacent to the resident  
7 school district if the conditions of paragraphs 1 and 2 of  
8 subsection B of this section are met and:

9        1. The resident school district has not adopted a policy  
10 pursuant to subsection A of this section; or

11        2. The extracurricular activity that the student seeks to  
12 participate in is not offered by the resident school district.

13        D. Eligibility for charter school and virtual charter school  
14 students shall be determined in accordance with the applicable  
15 public school district's eligibility rules and policies and any  
16 rules and policies of a school athletic association, as defined in  
17 Section 27-102 of Title 70 of the Oklahoma Statutes.

18        E. In order to participate in extracurricular activities  
19 pursuant to this section, charter school students and virtual  
20 charter school students shall:

21        1. Register an intention to participate with the board of  
22 education of the resident district, or other applicable school  
23 district in accordance with subsection C of this section, no later  
24 than the July 1 immediately preceding the school year in which

1 participation is intended or within thirty (30) days of enrolling in  
2 a charter school or virtual charter school within the state if  
3 relocating from out of state;

4 2. Pay any participation or activity fee in an amount equal to  
5 any fee charged to other student participants of the school district  
6 offering the activity;

7 3. Adhere to the same standards of behavior, responsibility,  
8 performance, and code of conduct as other student participants of  
9 the school district offering the activity;

10 4. Adhere to any rules and policies of a school athletic  
11 association which provides the coordination, supervision, and  
12 regulation of the extracurricular activities and contests of  
13 schools; and

14 5. Adhere to any physical exams or drug testing provisions  
15 required by the board of education of the resident district, or  
16 other applicable school district, or the school athletic association  
17 which provides the coordination, supervision, and regulation of the  
18 extracurricular activities and contests of schools;

19 F. For the purposes of this section, "resident school district"  
20 shall mean the public school district in which the student resides  
21 as defined in Section 1-113 of Title 70 of the Oklahoma Statutes.

22 SECTION 3. NEW LAW A new section of law to be codified  
23 in the Oklahoma Statutes as Section 8-201 of Title 70, unless there  
24 is created a duplication in numbering, reads as follows:

1       A. As used in this section:

2       1. "Resident district" means the public school district in  
3 which a student resides as defined in Section 1-113 of Title 70 of  
4 the Oklahoma Statutes;

5       2. "School athletic association" shall have the same meaning as  
6 defined in Section 27-102 of Title 70 of the Oklahoma Statutes; and

7       3. "Educated by other means" means students who are educated  
8 pursuant to the other means of education exception provided for in  
9 subsection A of Section 10-105 of Title 70 of the Oklahoma Statutes.

10      B. Beginning with the 2026-2027 school year, each school  
11 district board of education may adopt a policy allowing students who  
12 are educated by other means to participate in extracurricular  
13 activities that the school district offers.

14      C. Students who are educated by other means shall be eligible  
15 to participate in extracurricular activities offered by the  
16 student's resident school district if:

17      1. The extracurricular activity does not have an associated  
18 course requirement; and

19      2. The resident school district has adopted a policy pursuant  
20 to subsection B of this section.

21      D. A student who is educated by other means may apply to a  
22 public school district adjacent to the resident school district if  
23 the conditions of paragraph 1 of subsection C of this section are  
24 met and:

1        1. A resident school district has not adopted a policy pursuant  
2 to subsection B of this section; or

3        2. The extracurricular activity that the student seeks to  
4 participate in is not offered by the resident school district.

5        E. Eligibility for students who are educated by other means  
6 shall be determined in accordance with the applicable public school  
7 district's eligibility rules and policies and any rules and policies  
8 of a school athletic association.

9        F. In order to participate in extracurricular activities  
10 pursuant to this section, students who are educated by other means  
11 shall:

12        1. Register an intention to participate with the board of  
13 education of the resident district, or other applicable school  
14 district in accordance with subsection D of this section, no later  
15 than the July 1 immediately preceding the school year in which  
16 participation is intended or within 30 days from establishing  
17 residency within the state if relocating from out of state;

18        2. Pay any participation or activity fee in an amount equal to  
19 any fee charged to other student participants of the school district  
20 offering the activity;

21        3. Adhere to the same standards of behavior, responsibility,  
22 performance, and code of conduct as other student participants of  
23 the school district offering the activity;

1        4. Adhere to any rules and policies of a school athletic  
2 association which provides the coordination, supervision, and  
3 regulation of the extracurricular activities and contests of  
4 schools;

5        5. Adhere to any physical exams or drug testing provisions  
6 required by the board of education of the resident district, or  
7 other applicable school district, or the school athletic association  
8 which provides the coordination, supervision, and regulation of the  
9 extracurricular activities and contests of schools; and

10       6. Adhere to the same academic standards as other participants  
11 of the resident district, or other applicable school district,  
12 pursuant to the provisions of subsection G of this section.

13       G. During the time period a student who is educated by other  
14 means participates in extracurricular activities pursuant to the  
15 provisions of this section, the student shall meet academic  
16 standards by a method of evaluation agreed upon by the parent or  
17 legal guardian of the student and the superintendent of the resident  
18 district, or other applicable school district in accordance with  
19 subsection D of this section. The method of evaluation may include  
20 a review of the student's work by a certified teacher employed by  
21 the district, the student's performance on a nationally recognized  
22 standardized test, or evaluation of grades earned through  
23 correspondence courses.

1       SECTION 4.       AMENDATORY       70 O.S. 2021, Section 27-103, is  
2 amended to read as follows:

3       Section 27-103. A public school or school district shall not be  
4 a member of any school athletic association unless that association  
5 has adopted a written policy that requires the following:

6       1. All records of the association to be made accessible  
7 consistent with the provisions of the Oklahoma Open Records Act;

8       2. All meetings of the association to be open and conducted in  
9 a manner consistent with the provisions of the Oklahoma Open Meeting  
10 Act, including specifically the notice and agenda, voting and  
11 executive session requirements; ~~and~~

12       3. A student who is educated pursuant to the other means  
13 exception provided for in subsection A of Section 10-105 of this  
14 title or enrolled in a charter school or virtual charter school  
15 authorized by the Oklahoma Charter Schools Act, shall be allowed to  
16 participate in interscholastic activities or contests offered by the  
17 student's resident district as defined in Section 1-113 of this  
18 title, or offered by another public school district in accordance  
19 with subsection C of Section 2 or subsection D of Section 3 of this  
20 act; and

21       4. An annual financial audit and a compliance audit of all  
22 funds of the association in accordance with the auditing standards  
23 set forth in the Oklahoma Public School Audit Law. In addition, the  
24 association shall have performance audits conducted of the

1 operations of the association. A performance audit shall be  
2 conducted no later than December 31, 2014, and by December 31 every  
3 five (5) years thereafter.

4 SECTION 5. This act shall become effective November 1, 2026.

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6 COMMITTEE REPORT BY: COMMITTEE ON APPROPRIATIONS AND BUDGET, dated  
7 03/05/2026 - DO PASS, As Amended and Coauthored.  
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